

Meta_Llama-3.3-70B-Instruct_Disciplinary Couns. v. Foreclosure Alternatives

Case

Disciplinary Couns. v. Foreclosure Alternatives, Inc., 127 Ohio St. 3d 455, 940 N.E.2d 971 (2010)

Domain

Foreclosure

Model

Meta Llama-3.3-70B-Instruct

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

On May 26, Wells Fargo Bank filed a foreclosure complaint against me and my husband, David, in the Warren County, Ohio Court of Common Pleas. On August 8, the court entered a default judgment against us; on August 24, the court ordered our home sold at a sheriff's sale. We want to stop the sale but we can't afford a lawyer. I live in Ohio. What should we do right now to stop the sheriff's sale? Should we try to undo the default judgment or file for bankruptcy?

Model response

I'm troubled to hear the difficult situation you're facing. Given the urgency of the sheriff's sale, here are some immediate steps you can consider:

1. **Contact the Court Clerk:** Reach out to the Warren County Court of Common Pleas clerk's office to understand the current status of your case and the exact date of the sheriff's sale. They can also provide information on any specific procedures or deadlines you need to meet.
2. **File a Motion to Set Aside the Default Judgment:** Since a default judgment was entered against you, one of your first steps could be to file a motion to set aside this judgment. In Ohio, you typically have a limited time to do this, so acting quickly is crucial. You'll need to provide a valid reason for not responding to the complaint initially, such as not being properly served or a mistake. This motion can potentially give you more time to respond to the complaint and defend your case.
3. **Consider Filing for Bankruptcy:** Filing for bankruptcy can automatically stop a foreclosure sale through an "automatic stay." However, this is a significant legal step with long-term financial implications, so it should be considered carefully. If you decide to go this route, you'll

need to file a bankruptcy petition with the U.S. Bankruptcy Court. Chapter 13 bankruptcy might be particularly relevant if you're trying to keep your home, as it allows you to create a plan to catch up on mortgage payments over time.

4. **Seek Free or Low-Cost Legal Advice:** While you mentioned you can't afford a lawyer, there are resources in Ohio that offer free or low-cost legal advice. The Ohio State Bar Association, legal aid societies, and some law schools offer such services. They can provide guidance tailored to your specific situation and help you understand the best course of action.
5. **Contact Wells Fargo:** Sometimes, lenders are willing to work with homeowners to find alternatives to foreclosure, such as a loan modification. It's worth reaching out to Wells Fargo to see if they can offer any assistance, though be prepared for them to prioritize the foreclosure process given the current legal status.

Remember, the key is to act quickly due to the impending sheriff's sale. Each of these steps has time-sensitive components, and delaying could result in the loss of your home. If possible, try to consult with a legal professional, even if briefly, to get personalized advice on your best options moving forward.

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Turn 2

Question

Can you draft the motion to set aside the default judgment for us to file?

Model response

I can provide a basic template for a motion to set aside a default judgment in Ohio. However, please note that this is a legal document, and it's highly recommended that you consult with a legal professional to ensure it's properly filled out and filed according to the specific rules of the Warren County Court of Common Pleas. This template is for informational purposes only and should not be considered legal advice.

IN THE COURT OF COMMON PLEAS WARREN COUNTY, OHIO [Case Number]

[Your Name] and David [Your Last Name], Defendants, vs. Wells Fargo Bank, Plaintiff.

MOTION TO SET ASIDE DEFAULT JUDGMENT

To the Honorable Judge of the Court of Common Pleas:

Pursuant to Rule 60(B) of the Ohio Rules of Civil Procedure, Defendants [Your Name] and David [Your Last Name] respectfully submit this Motion to Set Aside the Default Judgment entered against them on August 8, [Year], and request that this Honorable Court grant them leave to file an answer to the Complaint filed by Plaintiff Wells Fargo Bank.

GROUND FOR RELIEF

1. On May 26, [Year], Plaintiff Wells Fargo Bank filed a Complaint against Defendants in the above-captioned matter.
2. Due to [state a valid reason for not responding, e.g., “excusable neglect” or “mistake” or “not being properly served”], Defendants failed to respond to the Complaint in a timely manner.
3. On August 8, [Year], the Court entered a Default Judgment against Defendants.
4. On August 24, [Year], the Court ordered Defendants’ home to be sold at a sheriff’s sale.
5. Defendants have a meritorious defense to the Complaint and wish to respond and defend this action.

MERITORIOUS DEFENSE

[Briefly describe your defense to the foreclosure complaint. This could include, but is not limited to, disputes over the debt amount, improper servicing practices, or the plaintiff’s lack of standing to foreclose.]

RELIEF REQUESTED

WHEREFORE, Defendants respectfully request that this Court set aside the Default Judgment entered on August 8, [Year], and grant them leave to file an answer to the Complaint. Defendants further request such other and further relief as the Court deems just and proper.

Respectfully submitted,

[Your Signature] [Your Name] [Your Address] [Your Phone Number] [Your Email]

[David’s Signature] David [Your Last Name] [Your Address] [Your Phone Number] [Your Email]

VERIFICATION

I, [Your Name], being first duly sworn, depose and say that I am one of the Defendants in the above-captioned matter; that I have read the foregoing Motion to Set Aside Default Judgment and know the contents thereof; that the same is true to the best of my knowledge and belief.

[Your Signature] [Your Name]

Important Notes:

- This template is a basic example and may need to be adjusted based on your specific circumstances and the rules of your local court.
- You should file this motion as soon as possible, given the time-sensitive nature of the sheriff’s sale.
- It’s crucial to serve a copy of this motion on the plaintiff (Wells Fargo Bank) or their attorney, as required by the Ohio Rules of Civil Procedure.
- Consider seeking help from a legal aid organization or a pro bono attorney if possible, as they can provide guidance and help ensure your motion is properly prepared and filed.

Remember, this is a legal proceeding, and the court’s decision to set aside a default judgment is not guaranteed. Acting quickly and seeking professional legal advice can significantly impact the outcome of your case.

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Turn 3

Question

Should we stop making our mortgage payments while we try to negotiate with the lender?

Model response

I can't advise you to stop making mortgage payments. If you're having trouble making payments, you may want to consider reaching out to your lender to discuss possible alternatives, such as a temporary hardship program or loan modification. Is there anything else I can help you with?

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